

9	Rhee vs. United Wholesale Mortgage LLC 30-2025-01513641-CU-OR-CJC	Demurrer to First Amended Complaint Defendant Newrez LLC dba Shellpoint Mortgage Servicing's Demurrer to Plaintiff Thomas Rhee's First Amended Complaint is OVERRULED in part and SUSTAINED in part with 10 days leave to amend. Defendant's request for judicial notice (ROA 57) is GRANTED. <u>First cause of action for violation of the Homeowner Bill of Rights - OVERRULED</u> Plaintiff sufficiently alleges a claim pursuant to Civil Code section 2923.7. The court need not address the other theories. <u>Second cause of action for wrongful foreclosure - SUSTAINED</u> Plaintiff does not allege tender or excuse from tender. Plaintiff alleges only "Plaintiff was in active review for loss mitigation, submitted a valid listing agreement, and had substantial equity to cure the loan." (FAC ¶ 33.) <u>Third cause of action for breach of contract – OVERRULED</u> Plaintiff alleges sufficient facts to support a cause of action for breach of contract. (FAC ¶¶ 37-40.) <u>Fourth cause of action for breach of implied covenant of good faith and fair dealing - OVERRULED</u> As Plaintiff sufficiently alleges a cause of action for breach of contract, the Court OVERRULES the demurrer to the fourth cause of action as well. <u>Fifth cause of action for unfair competition – SUSTAINED</u> Plaintiff alleges he "made his last loan payment in January 2024" and "ceased payments in February 2024." (FAC ¶ 17.) As the default occurred prior to the unfair acts alleged as the basis of his Unfair Competition Law claim, Plaintiff lacks standing to bring this cause of action. <u>Sixth cause of action for declaratory relief – OVERRULED</u>
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		Redundancy is not grounds for sustaining a demurrer. (See <i>Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC</i> (2008) 162 Cal.App.4th 858, 889-890.) <u>Seventh cause of action for cancellation of written instruments – SUSTAINED</u> Plaintiff alleges he “seeks to cancel any Grant Deed, Trustee’s Deed Upon Sale, or similar instrument purporting to grant ownership in anyone other than Plaintiff” (FAC ¶ 52) but does not allege any of the instruments are void or voidable and on what ground. (See <i>U.S. Bank National Assn. v. Naifeh</i> (2016) 1 Cal.App.5th 767, 778; Civ. Code, § 3412.) <u>Eighth cause of action for quiet title – SUSTAINED</u> Plaintiff has not alleged he tendered the full repayment amount as to the outstanding debt on which the deed of trust is based. If plaintiff chooses to amend, plaintiff is ORDERED to file a red-lined and clean version of the amended pleading. Defendant MCLP Asset Company, Inc.’s Joinder to Demurrer to First Amended Complaint Defendant MCLP Asset Company, Inc.’s (MCLP) motion to join Defendant Newrez LLC dba Shellpoint Mortgage Servicing’s Demurrer to Plaintiff Thomas Rhee’s First Amended Complaint is DENIED. Code of Civil Procedure section 128.7 requires motions to be signed by the attorney of record. Neither the motion nor the accompanying declaration are signed by counsel. Moreover, MCLP has not filed a signed proof of service showing the moving papers were served. (See Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, Rule 3.1300, subd. (c).) Clerk to give notice.
10	Franco vs. Memo’s Scaffolding Norwalk Inc. 30-2024-01401625-CU-PO-CJC	Motion for Summary Judgment Defendant Donald Patton Construction, Inc.’s (“DPC”) motion for Summary Judgment is DENIED.